

ASCII MASTER FLOW – PANEL 1/12: Human Rights, Civil Liberties and Democratic Rights

CENTRAL FOCUS

Human Rights, Civil Liberties and Democratic Rights

[1] Human rights attach to persons through dignity and universal moral concern.

|

v

[2] Civil liberties protect legal freedom against arbitrary public power.

|

v

[3] Democratic rights enable citizens to participate in collective self-government.

|

v

[4] The categories overlap but are not arranged in one rigid hierarchy.

|

v

VERDICT -> Rights categories overlap because dignity, liberty and participation interdepend.

ANSWER USE -> Distinguish them through holder, function and duty-bearer.

ASCII MASTER FLOW – PANEL 2/12: Hohfeld and the Negative-Positive Obligation Grid

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Hohfeld and the Negative-Positive Obligation Grid

[1] Hohfeld separates claim, liberty, power and immunity positions.

|
v

[2] Negative duties require restraint; positive duties require protection or provision.

|
v

[3] Most real rights combine both dimensions through institutions and remedies.

|
v

[4] Every answer should identify holder, duty-bearer, content and remedy.

|
v

VERDICT -> Negative and positive identify obligation dimensions, not sealed right-types.

ANSWER USE -> Map every right through Hohfeldian position and required duty.

ASCII MASTER FLOW – PANEL 3/12: Natural, Legal, Historical and Personality Theories

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Natural, Legal, Historical and Personality Theories

[1] Natural-rights theories give claims moral force before legal recognition.

|
v

[2] Legal theories stress public definition, guarantee and enforceability.

|
v

[3] Historical theories ground rights in evolved practices and inheritance.

|
v

[4] Personality theories connect rights to moral development and common good.

|
v

VERDICT -> Rights theories separate moral source, legal guarantee, history and personality.

ANSWER USE -> Compare the source of validity before judging institutional force.

ASCII MASTER FLOW – PANEL 4/12: Locke, Paine, Green and Barker

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Locke, Paine, Green and Barker

[1] Locke grounds resistance in life, liberty, property and limited trust.

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v

[2] Paine attacks inherited privilege through universal natural equality.

|

v

[3] Green links rights to social recognition and moral self-development.

|

v

[4] Barker joins personality-grounding to legal guarantee without collapsing the two.

|

v

VERDICT -> Barker bridges moral purpose and law without proving effective enjoyment.

ANSWER USE -> Keep validity, recognition, enforceability and realisation distinct.

ASCII MASTER FLOW – PANEL 5/12: Burke, Laski, Marx and Nozick

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Burke, Laski, Marx and Nozick

[1] Burke protects prescriptive inheritance but risks preserving inherited exclusion.

|

v

[2] Laski treats rights as social conditions of personality and common welfare.

|

v

[3] Marx exposes class power beneath formally equal rights.

|

v

[4] Nozick defends side-constraints and an anti-redistributive minimal state.

|

v

VERDICT -> Rights can protect agency and still conceal unequal social power.

ANSWER USE -> Compare welfare, class and libertarian critiques through one dispute.

ASCII MASTER FLOW – PANEL 6/12: Theses, Directives and Rights-Answer Architecture

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Theses, Directives and Rights-Answer Architecture

[1] A thesis should identify the rights theory, obligation structure and enforcement level.

|
v

[2] Directive control determines whether comparison, criticism or application dominates.

|
v

[3] Generations answers must distinguish mnemonic value from historical accuracy.

|
v

[4] Covenant answers must separate immediate duties from progressive realisation.

|
v

VERDICT -> Directive fidelity determines the theory, duty and remedy required.

ANSWER USE -> State the obligation structure in the thesis before examples.

ASCII MASTER FLOW – PANEL 7/12: MacIntyre and Accurate Feminist Critiques

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MacIntyre and Accurate Feminist Critiques

[1] MacIntyre challenges abstract rights-talk from traditions and social practices.

|

v

[2] Feminist critique tests whether neutral rights conceal patriarchal power.

|

v

[3] Firestone foregrounds sex-class and reproductive control.

|

v

[4] Rowbotham joins women's oppression to capitalism, labour and historical struggle.

|

v

VERDICT -> Community and feminist critiques expose different limits of abstraction.

ANSWER USE -> Separate MacIntyre, Firestone and Rowbotham by mechanism.

ASCII MASTER FLOW – PANEL 8/12: Generations of Rights and Indivisibility

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Generations of Rights and Indivisibility

[1] First-generation rights protect civil and political agency but need institutions.

|

v

[2] Second-generation rights contain progressive and immediate obligations.

|

v

[3] Third-generation claims have unequal legal status and enforcement paths.

|

v

[4] Indivisibility means mutual support, not identical duties or remedies.

|

v

VERDICT -> Generations organise claims but cannot rank or date them universally.

ANSWER USE -> Add actual legal status, immediate duties and interdependence.

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Nuremberg, UDHR, ICCPR and ICESCR

[1] The UDHR is a global standard rather than a treaty with Covenant form.

|
v

[2] ICCPR duties stress respect, ensure and effective remedy.

|
v

[3] ICESCR combines progressive realisation with immediate non-discrimination and steps.

|
v

[4] Nuremberg supplied an accountability precedent, not the whole origin of human rights.

|
v

VERDICT -> Human-rights instruments differ in form, duty and enforcement route.

ANSWER USE -> Distinguish UDHR standard-setting from Covenant obligations.

ASCII MASTER FLOW – PANEL 10/12: Restrictions, Emergencies, Horizontal Effect and Protection

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Restrictions, Emergencies, Horizontal Effect and Protection

- [1] Ordinary restrictions require law, permitted aim, necessity and proportionality.
 - |
 - v
- [2] Emergency derogation is narrower and leaves specified non-derogable rights intact.
 - |
 - v
- [3] Horizontal harms may require legislation or positive state protection.
 - |
 - v
- [4] The NHRC detention case is an allegation and response anchor, not an adjudicated finding.
 - |
 - v

VERDICT -> Lawful limits and emergency derogation require separate structured tests.

ANSWER USE -> Use the NHRC case only as an allegation and institutional response.

ASCII MASTER FLOW – PANEL 11/12: MCQ Remediation and Trap Repair

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MCQ Remediation and Trap Repair

[1] Close options test moral validity, recognition, enforceability and realisation.

|

v

[2] Civil liberties may protect non-citizens while electoral rights usually depend on citizenship.

|

v

[3] Absolute-right language must be confined to the applicable legal rule and context.

|

v

[4] Social movements can deepen effective rights without themselves replacing legal guarantee.

|

v

VERDICT -> Close options turn on legal level, obligation, holder and remedy.

ANSWER USE -> Reject absolute language unless the specific rule supports it.

ASCII MASTER FLOW – PANEL 12/12: PYQ Ownership and Answer Practice

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PYQ Ownership and Answer Practice

[1] Seven rights PYQs are cross-applied from Individual and State.

|
v

[2] Primary Philosophy ownership remains explicit in every transferred question.

|
v

[3] Six original questions test taxonomy, theories, generations and enforcement.

|
v

[4] Final recall: rights require justification, law, remedy and usable institutional access.

|
v

VERDICT -> Rights become real through justification, recognition, remedy and access.

ANSWER USE -> Preserve Philosophy ownership and end with institutional plurality.